

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tarlee Sonie	Team: Squad #09	CCRB Case #: 202207245	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/26/2022 4:00 PM	Location of Incident: 61st Precinct stationhouse (2575 Coney Island Ave)	18 Mo. SOL 4/26/2024	Precinct: 61		
Date/Time CV Reported Thu, 10/27/2022 3:07 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 10/27/2022 3:07 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Joseph Buttigheri	25223	966973	061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Beatrice Arico	13086	966346	061 PCT
2. SGT Mikhail Goncharov	03579	949043	061 PCT
3. SGT John Siciliano	04493	949661	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Joseph Buttigheri	Abuse: Police Officer Joseph Buttigheri threatened to remove § 87(2)(b) to the hospital.	A . Substantiated

Case Summary

On October 27, 2022, § 87(2)(b) filed the following complaint via the CCRB's call processing system.

On October 26, 2022, at approximately 4:00 pm, § 87(2)(b) entered the 61st Precinct stationhouse to follow up on a complaint report. While at the stationhouse, PO Joseph Buttigheri of the 61st precinct threatened to call Emergency Medical Services (EMS) and have § 87(2)(b) removed to the hospital based on her perceived mental health (**Allegation A: Abuse of Authority, substantiated**). Ultimately, § 87(2)(b) was not removed to the hospital, remained in the stationhouse, and spoke with Police Officer Beatrice Arico, also of the 61st Precinct, about her complaint report before leaving.

No arrests were made, or summons issued in relation to this incident.

On November 21, 2022, the investigation obtained two body-worn cameras (BWC) videos in relation to this incident (**Board Review 02, 10**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Joseph Buttigheri threatened to remove § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) was escorted out of the 61st precinct stationhouse by PO Buttigheri (**Board Review 08**).

In her CCRB interview, § 87(2)(b) stated that she went to the 61st precinct stationhouse to follow up on a complaint report that was inputted incorrectly (**Board Review 01**). While at the stationhouse, she spoke with an officer at the front desk before being escorted out of the stationhouse by PO Buttigheri. Once outside, § 87(2)(b) spoke with PO Buttigheri. PO Buttigheri became "belligerent" and started acting "nasty" toward her.

PO Buttigheri's BWC captures his interaction with § 87(2)(b) at the 1:26 minute mark (**Board Review 03**). While standing in the entryway of the 61st precinct stationhouse with PO Buttigheri and PO Arico, § 87(2)(b) is depicted speaking at an elevated volume and at 1:28 she says to PO Buttigheri, "I don't want to talk to you no more, yeah. I know cause you don't like black people. Isn't that the case?" PO Arico responds, "That has nothing to do with it." § 87(2)(b) states, "Is that the case?" At the 1:35 minute mark, PO Buttigheri responds, "No, I'm just gonna have the ambulance take you to the hospital cause clearly..." § 87(2)(b) interrupts and explains that she is not going anywhere. At the 1:39 minute mark, PO Buttigheri continues and says, "You're acting all erratic" and inquires if § 87(2)(b) is taking any medication. At the 1:49 minute mark, § 87(2)(b) states, "I work for the city just like you, twenty-something years, I ain't acting no erratic, I'm tryna get rights. My rights were violated."

During his CCRB interview, PO Buttigheri stated that his attention was brought to § 87(2)(b) because she was yelling in the civilian waiting area (**Board Review 04**). He approached § 87(2)(b) to inquire about her situation and § 87(2)(b) explained that a report she filed was documented incorrectly and she wanted to fix the report. When he informed § 87(2)(b) that officers at the stationhouse could not fix her report, she became "loud" and "aggressive." § 87(2)(b) then cursed at officers, raised her voice, yelled at him, and called him racist. PO Buttigheri explained that § 87(2)(b) spoke with her hands and her hands got close to his face and he was unsure whether she intended to attack him. PO Buttigheri described § 87(2)(b) demeanor as "erratic," "crazy," "not

right”, and “unpredictable” and clarified that he believed § 87(2)(b) was “crazy” because she alleged that he hated black people and stated that he was going to put his knee on her neck which are statements that normal people don’t make. PO Buttigheri stated that he feared for the safety of other civilians in the waiting area because of § 87(2)(b) unpredictability but he did not fear § 87(2)(b) in the moment.

Patrol Guide 221-13 states that an officer may remove a civilian to the hospital involuntarily when the officer, “reasonably believes that a person who is apparently mentally ill or emotionally disturbed, must be taken into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others.” (**Board Review 07**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Buttigheri has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of March 13, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (**Board Review 09**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- The RPBP Unit reviewed this complaint and ultimately decided it did not contain actionable allegations of Racial Profiling or Bias-Based Policing.

Squad: 9

Investigator:	<u>Tarlee Sonie</u>	<u>Inv. Tarlee Sonie</u>	<u>03/16/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Wassim Abedrabbo</u>	<u>IM W. Abedrabbo</u>	<u>7/7/23</u>
	Signature	Print Title & Name	Date

Reviewer: _____

Signature

Print Title & Name

Date